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(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,205 S**
Mayer (45) **Date of Patent:** **** Sep. 9, 2025**

(54) **CARTON**

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(**) Term: **15 Years**

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(51) **LOC (15) Cl.** **09-03**

(52) **U.S. Cl.**
USPC **D9/433**

(58) **Field of Classification Search**

USPC D9/414-418, 419, 420-425, 430-433,
D9/499, 749, 721, 761, 711, 602;
D7/590, 601, 612; D19/91
CPC ... B65D 5/00; B65D 5/20; B65D 5/16; B65D
5/4204; B65D 5/5007; B65D 5/5206;
B65D 5/4295; B65D 5/2061; B65D
5/241; B65D 5/247; B65D 5/2057; B65D
1/00; B65D 1/22; B65D 1/225; B65D
2205/025

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D73,127 S	7/1927	Greve
2,019,870 A	11/1935	Perry
2,062,949 A	12/1936	Taylor
D106,826 S	11/1937	Dieffenback
D126,123 S	3/1941	Clemens
2,341,762 A	2/1944	Conklin

(Continued)

FOREIGN PATENT DOCUMENTS

GB	2088269 A	11/1999
JP	2004521834 A *	7/2004

OTHER PUBLICATIONS

Wholesale Eco Friendly Takeaway Containers with Ventilation Hole. Date first available: 2025. Site visited: Mar. 10, 2025. Available online: <https://yideshinevictory.en.made-in-china.com/product/zFCnxWKPhDht/China-Wholesale-Eco-Friendly-Takeaway-Containers-Card-Takeaway-Boxes-with-Ventilation-Hole.html> (Year: 2025).*

(Continued)

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(57) **CLAIM**

The ornamental design for a carton, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a carton showing the new design;

FIG. 2 is a left side elevation view thereof;

FIG. 3 is a right side elevation view thereof;

FIG. 4 is a front elevation view thereof;

FIG. 5 is a rear elevation view thereof;

FIG. 6 is a top plan view thereof;

FIG. 7 is a bottom plan view thereof;

FIG. 8 is a perspective view of the carton of FIG. 1 shown in an open configuration;

FIG. 9 is a left side elevation view thereof;

FIG. 10 is a right side elevation view thereof;

FIG. 11 is a front elevation view thereof;

FIG. 12 is a rear elevation view thereof;

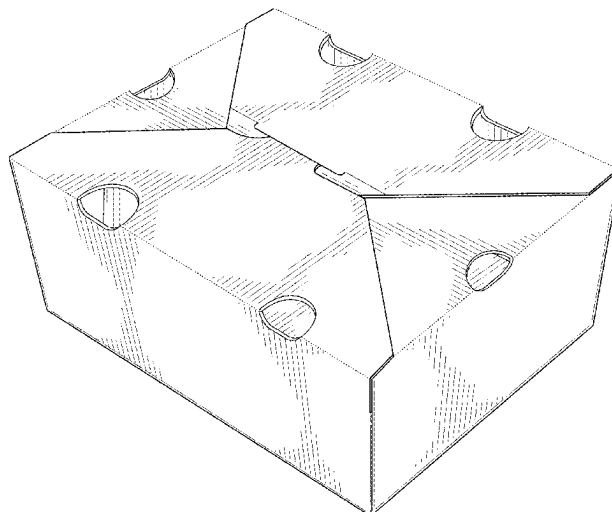
FIG. 13 is a top plan view thereof;

FIG. 14 is a bottom plan view thereof; and,

FIG. 15 is a top plan view of the carton of FIG. 1 shown in a blank configuration.

In the drawings, the dotted lines shown in the drawings are for the purpose of illustrating perforations that form part of the claimed design.

1 Claim, 11 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

2,355,729	A	8/1944	Inman		D467,798	S	12/2002	Cohon
2,409,736	A	10/1946	Caimi		6,612,482	B2	9/2003	Ross
2,475,294	A	7/1949	Rafoth		D484,364	S	12/2003	Bailey et al.
D158,362	S	5/1950	Dischler		D484,799	S	1/2004	Hoffman et al.
2,568,170	A	9/1951	Ringler		D495,251	S	8/2004	Zack
2,786,572	A	3/1957	Gentry		D497,309	S	10/2004	Nordland et al.
2,793,801	A	5/1957	Papadopoulos		D500,674	S	1/2005	Chou
D183,716	S	10/1958	Burns		D504,813	S	5/2005	Chou
2,927,502	A	3/1960	Watrous		D509,733	S	9/2005	Jongens
3,027,063	A	3/1962	Zastrow		D512,836	S	12/2005	Marnell, II
D194,246	S	12/1962	Engelmann		7,004,314	B2	2/2006	Pucillo et al.
3,067,924	A *	12/1962	Baker	 B65D 5/247	D519,366	S	4/2006	Epstein
				229/160	D519,830	S	5/2006	Yocum
D200,249	S	2/1965	Hancock		D521,376	S	5/2006	Mosto
3,367,557	A	2/1968	Farquhar		D521,862	S	5/2006	Siethoff et al.
D211,564	S	7/1968	Bailey		D531,498	S	11/2006	Fluegel et al.
3,391,816	A	7/1968	Swett		D542,129	S	5/2007	Moorman
D212,495	S	10/1968	Stageberg		D549,456	S	8/2007	Dretzka
3,443,681	A	5/1969	Wysocki		D549,457	S	8/2007	Dretzka
D214,523	S	6/1969	Stone et al.		D557,047	S	12/2007	Dretzka
D217,441	S	5/1970	Kanaga		D561,023	S	2/2008	Jacxsens
D219,263	S	11/1970	Castelli et al.		D561,408	S	2/2008	Marsh
3,595,425	A	7/1971	Eicholtz et al.		D562,125	S	2/2008	Kienemund-Paroll
3,604,614	A	9/1971	Sternfeld		D563,673	S	3/2008	Dretzka
3,640,380	A	2/1972	Huffman		D567,671	S	4/2008	Say Ulin
D224,090	S	7/1972	Cyr et al.		D568,765	S	5/2008	Miles
3,701,181	A	10/1972	Lock		D573,408	S	7/2008	Lovett
D232,302	S	8/1974	Lazure		D573,409	S	7/2008	Lovett
D232,524	S	8/1974	Schy		D576,482	S	9/2008	DeBusk
3,853,220	A	12/1974	Luray		D578,387	S	10/2008	Lovett
D241,016	S	8/1976	Reynold		D582,268	S	12/2008	Zanaletti
4,175,691	A *	11/1979	Cornell	 B65D 5/0015	D582,791	S	12/2008	Elmerhaus
				206/509	D584,108	S	1/2009	Olsson
D255,011	S	5/1980	Cooper et al.		D590,596	S	4/2009	Dretzka
D259,615	S	6/1981	Morris, Jr.		D595,155	S	6/2009	Larson
D260,604	S	9/1981	Otto		D596,027	S	7/2009	Kalberer
D276,137	S	10/1984	Vere et al.		D596,448	S	7/2009	Nolan
4,529,464	A	7/1985	Jones		D596,449	S	7/2009	Nolan
D280,290	S	8/1985	Bakus		D596,903	S	7/2009	Willis et al.
4,596,356	A	6/1986	Chaussadas		7,565,997	B1	7/2009	Lim
4,844,328	A	7/1989	Cooper		D599,611	S	9/2009	Hoekstra
4,846,398	A	7/1989	Johnson		D605,896	S	12/2009	Zalewski et al.
D329,376	S	9/1992	Burd		D608,153	S	1/2010	Furlong
5,226,588	A	7/1993	Schramm et al.		D608,634	S *	1/2010	Riedi
5,322,182	A	6/1994	Fritz		D615,822	S	5/2010	Klein
D351,997	S	11/1994	Finnah		D622,139	S	8/2010	Marcott et al.
D352,203	S	11/1994	Campbell et al.		D630,508	S	1/2011	Hubbard, Jr. et al.
5,411,204	A	5/1995	Demay		D630,885	S	1/2011	Stein
5,419,451	A	5/1995	Bitel, Jr.		D631,741	S	2/2011	Hubbard, Jr. et al.
D363,192	S	10/1995	Reeves et al.		D631,742	S	2/2011	Hubbard, Jr. et al.
D363,856	S	11/1995	Westbrooks, Jr.		D631,743	S	2/2011	Hubbard, Jr. et al.
5,484,059	A	1/1996	Sutherland		D633,341	S	3/2011	Smyers
D367,172	S	2/1996	Brightbill et al.		D635,469	S	4/2011	Buitrago
D371,940	S	7/1996	Krupa		D641,256	S	7/2011	Fisher
D372,170	S	7/1996	Ahern, Jr.		D642,934	S	8/2011	Ly
D376,953	S	12/1996	Dunn		D643,311	S	8/2011	Meyers
D394,385	S	5/1998	Laughlin		D645,708	S	9/2011	Stamper et al.
D395,547	S	6/1998	Sussman		8,061,585	B2	11/2011	Nikolai et al.
5,765,685	A	6/1998	Roosa		D649,838	S	12/2011	Stamper et al.
D397,294	S	8/1998	Saulas		D652,316	S	1/2012	Ren et al.
D398,526	S	9/1998	Schwarz et al.		D653,496	S	2/2012	Henry
5,855,275	A	1/1999	Hunter et al.		D657,261	S	4/2012	De Gast
5,873,220	A	2/1999	Haraldsson et al.		D665,271	S	8/2012	Halty et al.
D409,908	S	5/1999	Besana		D665,628	S	8/2012	Mayer
5,927,502	A	7/1999	Hunter		D669,352	S	10/2012	Paslawski
D412,398	S	8/1999	Watabe		D674,690	S	1/2013	Sill
D440,118	S	4/2001	Claffy et al.		D675,092	S	1/2013	Sill
D442,859	S	5/2001	Hirschey		D675,520	S	2/2013	Sill
D444,703	S	7/2001	Allasia		D675,920	S	2/2013	Sill
D445,311	S	7/2001	Emonet et al.		D676,742	S	2/2013	Walter et al.
D448,130	S	9/2001	Wagner		D678,760	S	3/2013	Cooper
D451,769	S	12/2001	Stanos et al.		D678,761	S	3/2013	Cooper
D454,495	S	3/2002	Bryan et al.		D678,762	S	3/2013	Cooper
D460,689	S	7/2002	Robinson		D678,779	S	3/2013	Lee
D461,406	S	8/2002	Iacovelli		D679,950	S	4/2013	Cooper
					D682,085	S	5/2013	Hannant et al.
					D682,684	S	5/2013	Walter et al.
					D684,465	S	6/2013	Vernon et al.
					D684,858	S	6/2013	Sill

(56)

References Cited

U.S. PATENT DOCUMENTS

- D688,552 S 8/2013 Vernon et al.
D688,572 S 8/2013 Marin
D688,921 S 9/2013 Miros et al.
D691,035 S 10/2013 Sill
D693,180 S 11/2013 Peterson et al.
D693,215 S * 11/2013 Sill D9/418
D693,216 S 11/2013 Sill
D693,217 S 11/2013 Sill
D693,218 S 11/2013 Sill
D693,646 S 11/2013 Katterheinrich et al.
D693,679 S 11/2013 Sill
D695,101 S 12/2013 Keberlein et al.
D695,104 S 12/2013 Sill
D695,107 S 12/2013 Clements
D695,575 S 12/2013 Katz
D695,605 S 12/2013 Johnson
D697,789 S 1/2014 Gerdes et al.
D706,132 S 6/2014 Sill
D707,042 S 6/2014 Ruzzenente
D707,123 S 6/2014 Marchetti et al.
D710,691 S 8/2014 Genender
D712,153 S 9/2014 Lee
D714,638 S 10/2014 Mohn et al.
D718,641 S 12/2014 Ryan et al.
8,939,350 B2 1/2015 Valencia
D726,533 S 4/2015 Northrup
D727,724 S 4/2015 Pipes et al.
D727,732 S 4/2015 Petty
D728,359 S 5/2015 Iwegbu
D728,364 S 5/2015 Baker et al.
D730,178 S 5/2015 Fullan
D731,325 S 6/2015 Loessin
D735,576 S 8/2015 Aldridge
D737,820 S 9/2015 Yu et al.
D742,759 S 11/2015 Ryan et al.
9,211,970 B2 * 12/2015 Hubbard, Jr. B65D 5/2057
9,212,842 B2 12/2015 Vasbinder et al.
9,216,837 B2 12/2015 Hubbard et al.
D746,643 S 1/2016 Kraemer
D746,671 S 1/2016 Fohner et al.
D752,429 S 3/2016 Mayer
9,309,023 B2 4/2016 Hubbard, Jr. et al.
D758,184 S 6/2016 Tu et al.
D760,036 S 6/2016 Hucuptan
D763,706 S 8/2016 Shum et al.
D764,276 S 8/2016 Das et al.
D764,281 S 8/2016 Mayer
D766,664 S 9/2016 Wilson et al.
D767,409 S 9/2016 Nickell
D769,732 S 10/2016 Shoshan
D770,270 S 11/2016 McGarry et al.
D771,486 S 11/2016 Mayer
D772,053 S 11/2016 Mayer
9,505,516 B2 11/2016 Hubbard, Jr. et al.
D775,946 S 1/2017 Ghini et al.
D776,548 S 1/2017 Bell
D777,029 S 1/2017 Stratton
D778,115 S 2/2017 Strachan
D778,155 S 2/2017 Strachan
D778,722 S 2/2017 Strachan
D784,769 S 4/2017 Beckman et al.
D786,621 S 5/2017 Davis
D792,160 S 7/2017 Ng
D792,161 S 7/2017 Ng
D792,211 S 7/2017 Foster et al.
D792,222 S 7/2017 Sill et al.
D792,761 S 7/2017 Duval et al.
D793,868 S 8/2017 Kim et al.
D798,707 S 10/2017 Mayer
D798,736 S 10/2017 Shoshan
D809,849 S 2/2018 Lee
D809,930 S 2/2018 Kagawa
D809,931 S 2/2018 Kagawa
D814,929 S 4/2018 Bergeron et al.
D815,941 S 4/2018 Haddad
D815,955 S 4/2018 Park et al.
10,017,290 B2 7/2018 Faulkner et al.
D828,099 S 9/2018 Zhang
D828,157 S 9/2018 Paradis
D828,766 S 9/2018 Latour et al.
D829,563 S 10/2018 Park et al.
D830,193 S 10/2018 Park et al.
D830,852 S 10/2018 Sill et al.
D836,449 S 12/2018 Park et al.
10,167,134 B2 1/2019 Zeitlin et al.
D840,232 S 2/2019 Sill et al.
D849,553 S 5/2019 Song et al.
D850,932 S 6/2019 Troudt et al.
D850,933 S 6/2019 Troudt et al.
D854,942 S 7/2019 Requena et al.
D854,943 S 7/2019 Requena et al.
D858,270 S 9/2019 Requena et al.
D869,289 S 12/2019 Sill et al.
D875,530 S 2/2020 Sill et al.
D876,951 S 3/2020 Sill et al.
10,829,262 B2 11/2020 Sill et al.
2002/0108955 A1 8/2002 Erb
2003/0217946 A1 11/2003 Hsu
2004/0182916 A1 9/2004 Roseth
2005/0051461 A1 3/2005 Bryant
2005/0124521 A1 6/2005 Sadlowski et al.
2005/0150788 A1 7/2005 Feusner
2007/0074993 A1 4/2007 Philips
2007/0178194 A1 8/2007 Everard
2008/0269034 A1 10/2008 Stier
2009/0186132 A1 7/2009 Mangino et al.
2010/0065620 A1 3/2010 Smith
2011/0240653 A1 10/2011 Castner et al.
2012/0234904 A1 9/2012 Costanzo, Jr.
2014/0203070 A1 7/2014 Lee
2014/0263353 A1 9/2014 Bell
2014/0263600 A1 9/2014 Valencia
2016/0107830 A1 4/2016 Baryshyan
2018/0339807 A1 11/2018 Mobarhan
2019/0322409 A1 10/2019 Sill et al.
2020/0189806 A1 6/2020 Sill et al.
2022/0153469 A1 5/2022 Mayer
2025/0083860 A1 * 3/2025 Mayer B65D 5/241

OTHER PUBLICATIONS

LK Packaging RF-VSNKM #ReadyFresh® Vented Hot Snack Container. Date first available: 2025. Site visited: Mar. 11, 2025. Available online: <https://www.katom.com/909-RFVSNKM.html> (Year: 2025).*

“Bowl Sleeve”, The Custom Packaging Boxes, Available from internet, <https://thecustompackagingboxes.com/boxes-by-style/bowl-sleeve>, 2018, 04 pages.

Amazon, “Dart 205HT2, 9×6×3-Inch Performer White Two Compartment Foam Container with a Removable Hinged Lid, Carryout Food Disposable Containers”, Available from internet, <https://www.webrestaurantstore.com/cambro-9113cw414-camwear-teal-9-x-11-3-compartment-meal-delivery-tray-case/2149113CWTE.html>, Sep. 12, 2016, 6 pages.

Alibaba, “Disposable Plastic Two Compartment Food Container”, https://www.alibaba.com/product-detail/Disposable-plastic-two-compartment-food-container_60599614850.html, 2018, 8 pages.

Alibaba, “Black Disposable Divided Food Trays”, Available from Internet, URL: <https://thai.alibaba.com/product-detail/Airline-disposable-plastic-four-compartment-CPET-1238104653.html>, Accessed on Apr. 3, 2017, Oct. 1, 2013, 9 pages.

“Food packaging sleeves”, Ostle & Maillard, 2019, 01 page.

Amazon, “Food Containers 3 Compartment Premium”, Available from internet, URL: https://www.amazon.com/dp/B0741BQMY7/ref=sspa_dk_detail_2?psc=1%20&pd_rd_i=B0741BQMY7&pd_rd_wg=gDStp°/020&pd_rd_r=ACEV1YJAC97ZZPCCXWCW&pd_rd_w=XZKtg, Jul. 18, 2017, 9 pages.

Amazon, “Freshware Meal Prep Containers [30 Pack] 3 Compartment with Lids, Food Storage Containers, Bento Box 1 BPA Free | Stackable Microwave/Dishwasher/Freezer Safe (32 oz)”, Feb. 13, 2019, 9 pages.

(56)

References Cited**OTHER PUBLICATIONS**

Amazon, "Pactiv RCL750200, 3-Compartment Aluminum Foil Pans Combo with Flat Foil Lids, Take Out Disposable Foil Containers with Matching Covers", Available at https://www.amazon.com/Pactiv-RCL750200-3-Compartment-Disposable-Containers/dp/B01LXOJ7BP/ref=sr_1_1?keywords=Pactiv+RCL750200&qid=1572606252&sr=8-1, Sep. 28, 2016, 5 pages.

Amazon, "Southern Champion Tray 0731 #1 ChampPak Classic Take-Out Container, Kraft Paperboard Coated Inside", Southern Champion Tray, Jan. 17, 2013, 1 page.

Amazon, "Southern Champion Tray 23133K Kraft Paperboard Lock Corner Window Bakery Box", Available from Internet https://www.amazon.com/gp/product/B008WCWJ9S/ref=s9_zwish_hd_bw_g328_i1?pf_rd_m=ATVPDKIKXODER&pf_rd_s=merchandised-search-&pf_rd_r=OF299N2PNPMAY8WZM12D&pf_rd_t=101&pf_rd_p=2223275202&pf_rd_i=5016466011, Mar. 15, 2013, 1 page.

Amazon, "50 Paper Food to Go Containers—51oz—New Design with Waist Seal Band—Eco Friendly Disposable Kraft Paper Take Out Food Container—Sturdy Leak & Grease Proof Microwavable Take Away Boxes", Available from internet, <https://www.amazon.com/Paper-Food-Containers-Disposable-Microwavable/dp/B07M74VWXW>, Nov. 5, 2019, 6 pages.

Blair Candy, "Empty Candy Boxes", Available from internet, <https://www.blaircandy.com/emcabo.html>, 2013, 1 page.

Dean Supply, "Disposable Takeout Containers", Jul. 18, 2017, 9 pages.

Flex Active Sports, "Buy 3-Compartment Food Prep Containers", Available from Internet, URL:<http://flexactivesports.com/buy-3-compartment-food-prep-containers/>, Jan. 5, 2016, 14 pages.

Glynn, Robin, "Origami Treasure Chest", Available from internet <https://www.youtube.com/watch?v=WpgGqeBQvj4>, Nov. 29, 2010, 1 page.

Importitall, "Southern Champion Tray 0761 #1", ChampPak Retro Take-Out, Jul. 13, 2017, 1 page.

Importitall, "Southern Champion Tray 0764 #4", ChampPak Retro Take-Out, Jul. 13, 2017, 1 page.

Inno-Pak, "Innobox Edge Insert", Oct. 25, 2016, 3 pages.

Jcpak, "Cardboard Sleeves for Food Tray", Cartons and Boxes, Available from Internet, <http://www.jchengpackage.com/Cartons and Boxes/28.html>, 2018, 02 pages.

Kalifornia Love, "Extra Fruit Sensations Sweet Watermelon", Available from Internet, <http://www.kalifornialove.com/2010/07/extra-fruit-sensations-sweet-watermelon.html>, Jul. 28, 2010, 20 pages.

Nearof, "Review: Stride Spark Vitamin Chewing Gum", Available from Internet, <http://www.nearof.com/review-stride-spark-vitamin-chewing-Qum>, Sep. 7, 2011, 4 pages.

Placon, "Fresh n Clear Go Cubes Black Insert Tray", <https://www.placon.com/products/stock-food-package/fresh-n-clear-gocubes-black-insert-tray/>, 2016, 2 pages.

Robives, "Curved Lid Box", Nov. 2, 2013, 1 page.

Shutterstock, "Empty Food Tray Sleeve Packaging with Handles and Blueprint Template", Available from Internet, <https://www.shutterstock.com/image-illustration/empty-food-tray-sleeve-packaging-handles-288654425?rid=928534>, 08 pages.

Splash Packaging, "Natural Kraft Windowed Boxes", Available from Internet, <https://www.splashpackaging.com/window-bakery-boxes-kraft.html>, Oct. 4, 2014, 1 page.

The Delaware Gazette, "Inno-Pak is Staying Put", Available from Internet, <https://www.delgazette.com/news/295/inno-pak-is-staying-put>, accessed on Dec. 11, 2015, Jun. 13, 2015, 1 page.

The Dumbbelle, "Fitness Meal Prep Containers for Healthy Living", Available from Internet, <https://thedumbbelle.com/fitness-meal-prep-containers/>, Accessed on May 3, 2019, 9 pages.

Webstaurant Store, "Cambro 9113CW414 Camwear Teal 9"×11" 3 Compartment Meal Delivery Tray", Available from Internet, <URL: <https://www.webstaurantstore.com/cambro-9113cw414-camwear-teal-9-x-11-3-compartment-meal-delivery-tray-case/2149113CWTE.html>>, Mar. 14, 2010, 4 pages.

Webstaurantstore.com, "Choice 7¾"×5½"×2" Kraft Microwavable Folded Paper #2 Take-Out Container—200/Case", Available from Internet, <https://www.webstaurantstore.com/choice-8-1-2-x-6-x-2-kraft-microwavable-folded-paper-2-take-out-container-case/795PTOKFT2.html>, 6 pages.

Westrock, "Fold-Pak—Bio-Plus Earth", Available from Internet, <http://www.fold-pak.com/products/Bio-PlusEarth.htm>, Nov. 5, 2019, 2 pages.

Youtube, "Inno-Pak Rigid Microwavable Take Out Containers", Available from Internet, URL:<https://www.youtube.com/watch?v=WolGFgSHSk>, Sep. 17, 2014, 1 page.

* cited by examiner

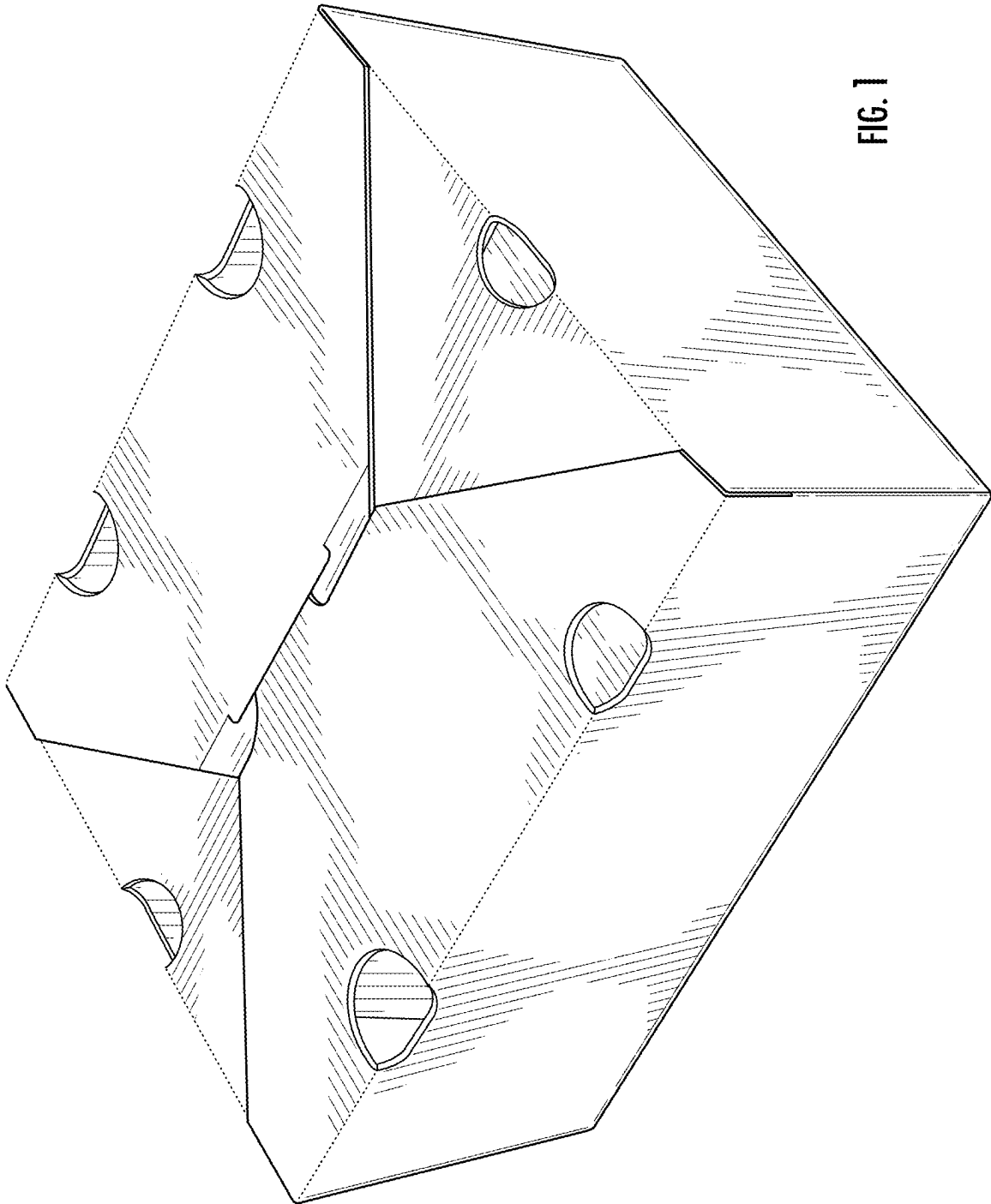


FIG. 1

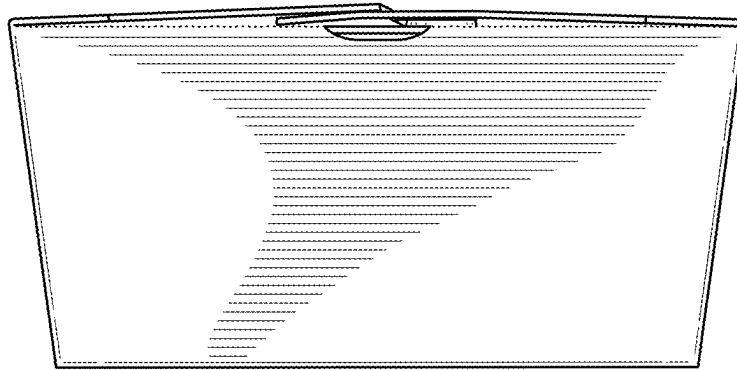


FIG. 2

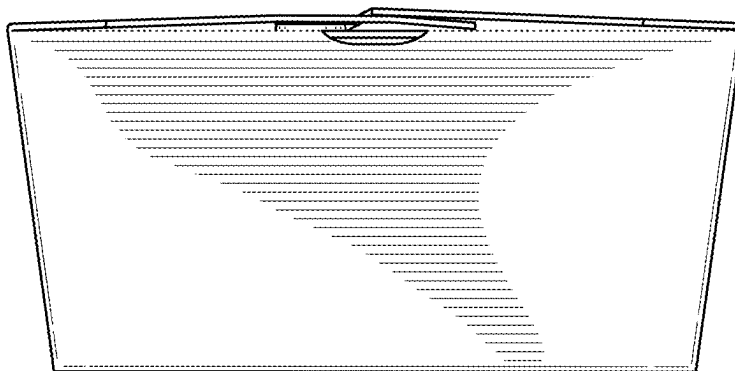


FIG. 3

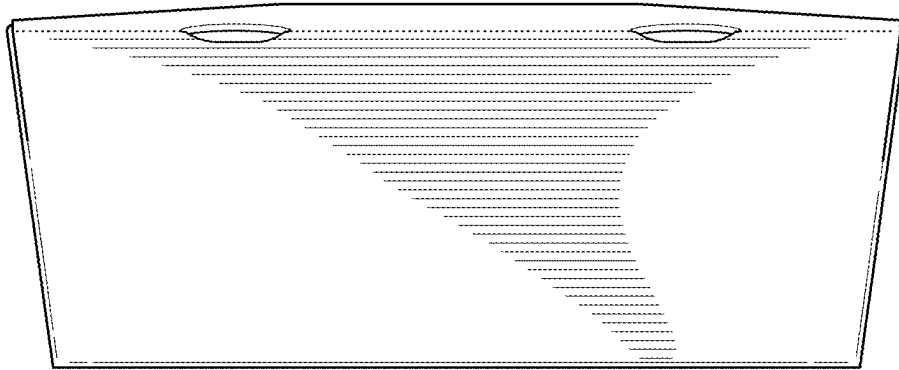


FIG. 4

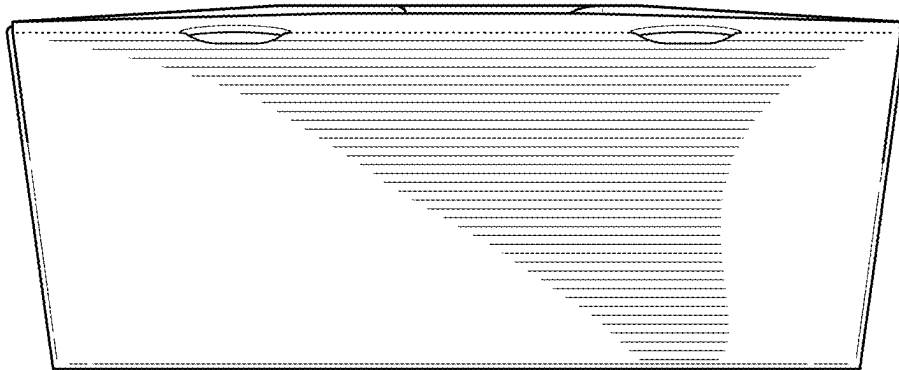


FIG. 5

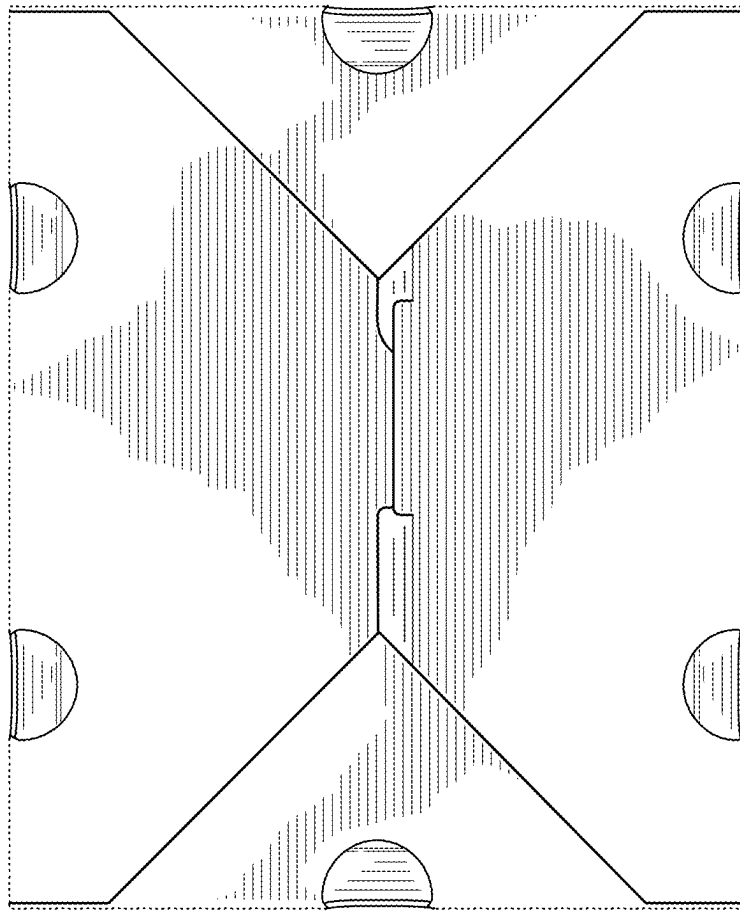


FIG. 6

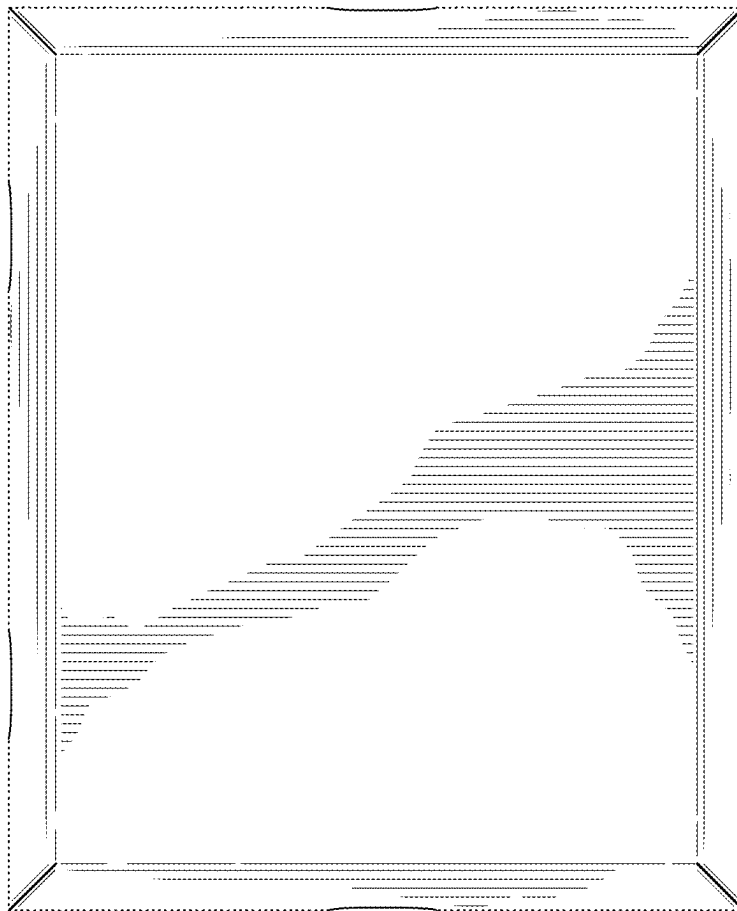


FIG. 7

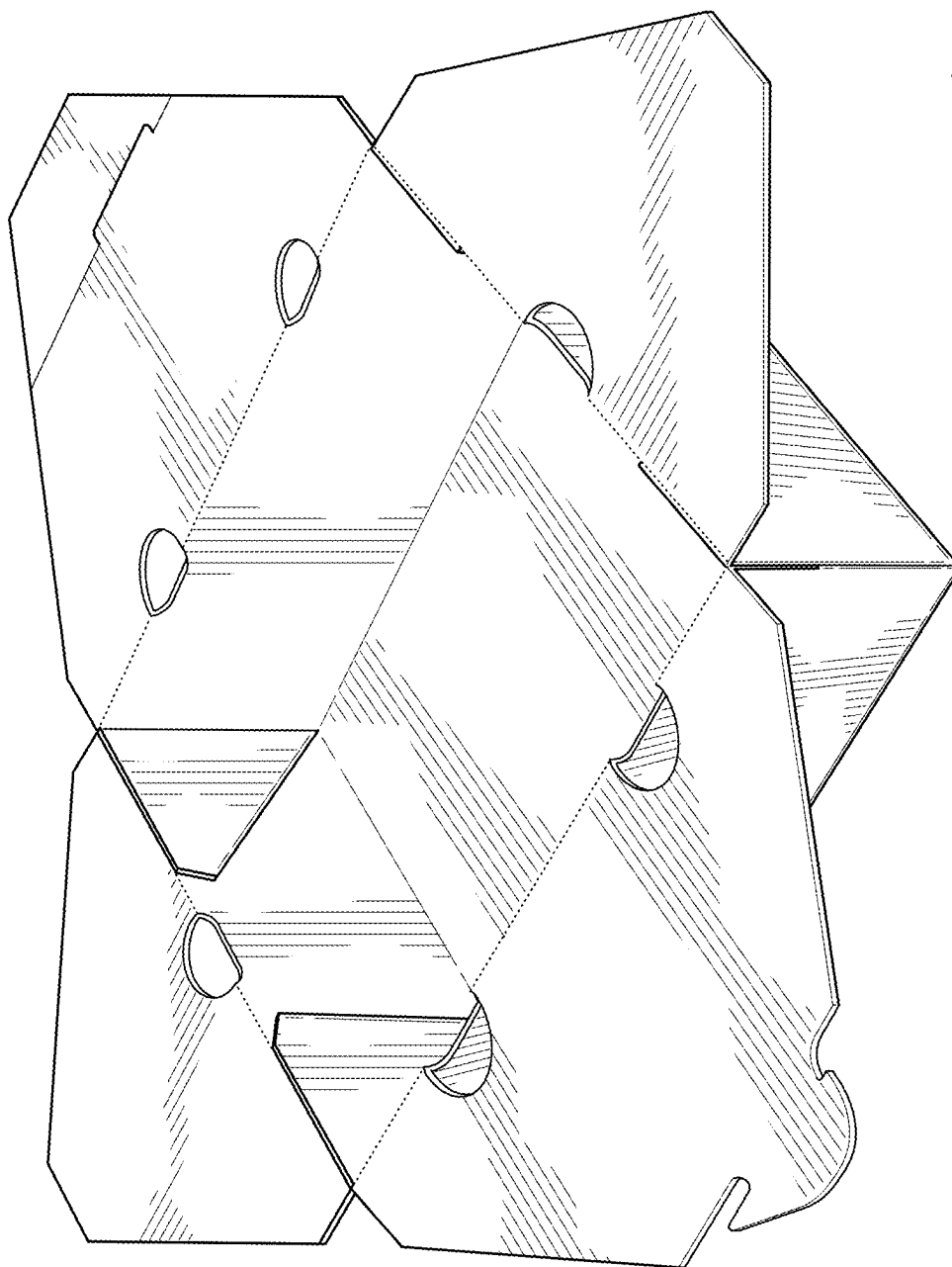
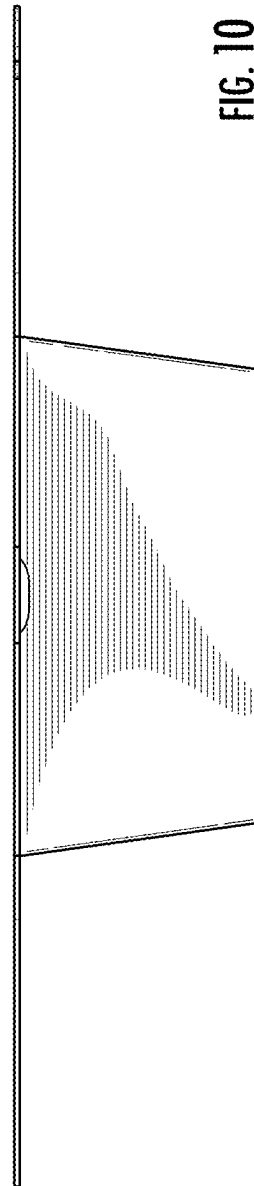
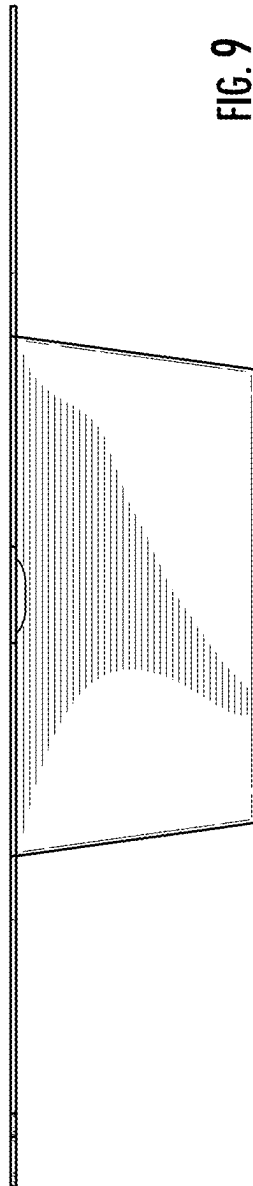
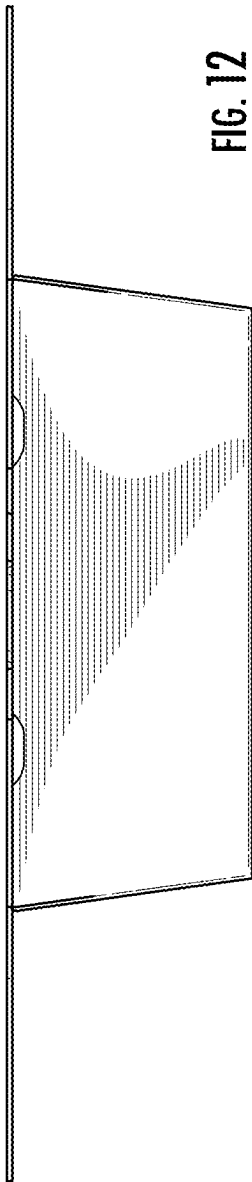
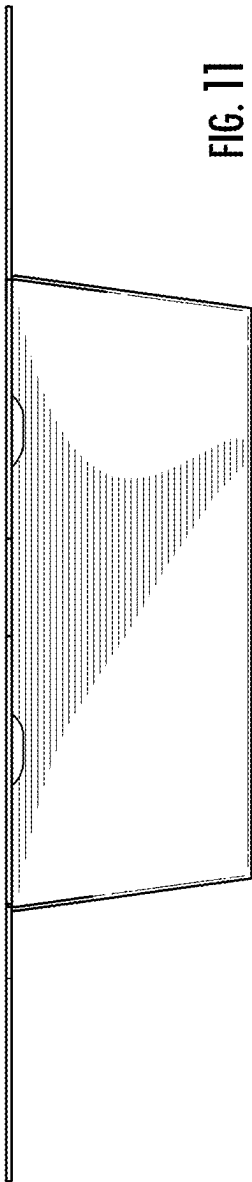
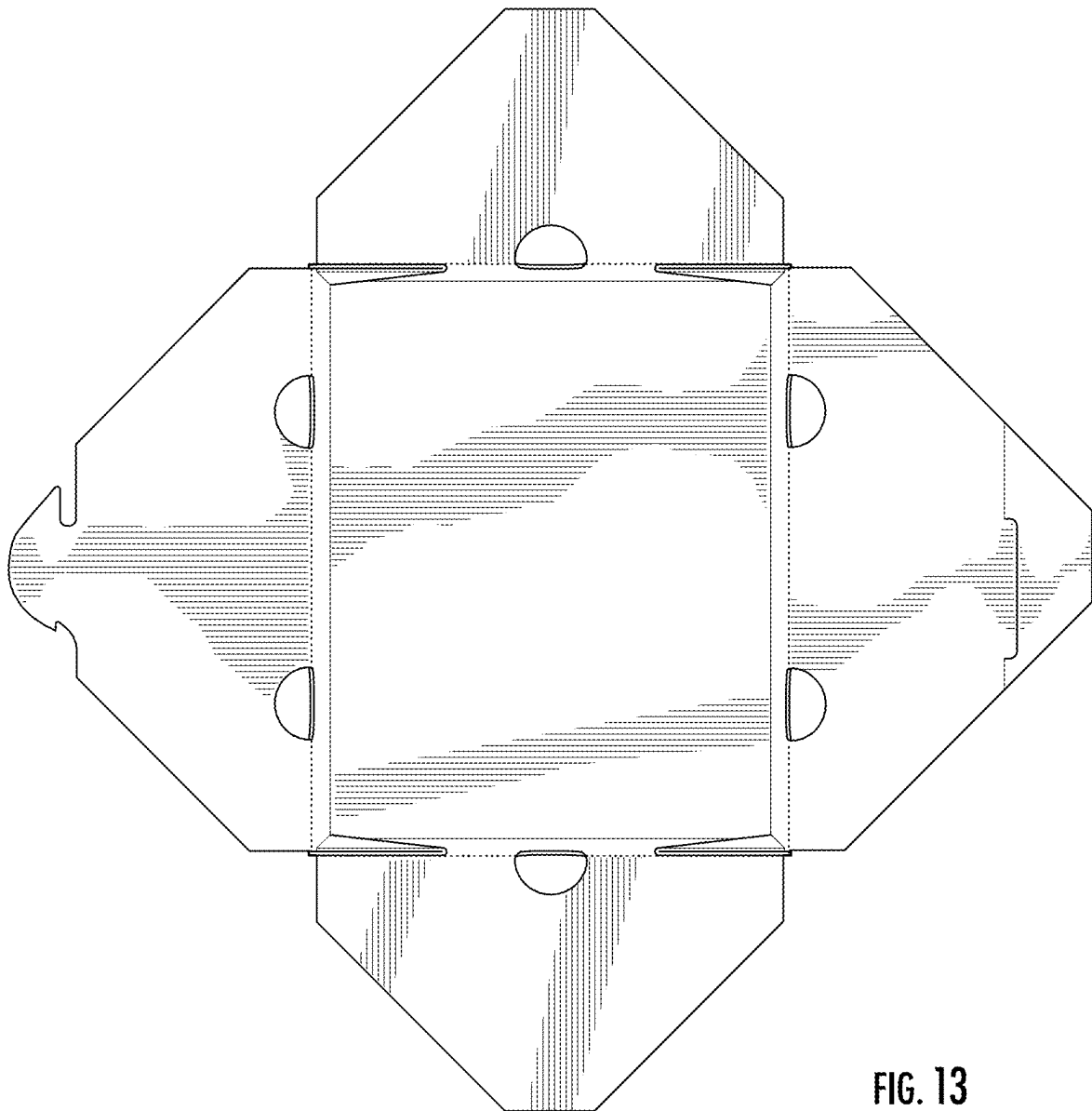


FIG. 8







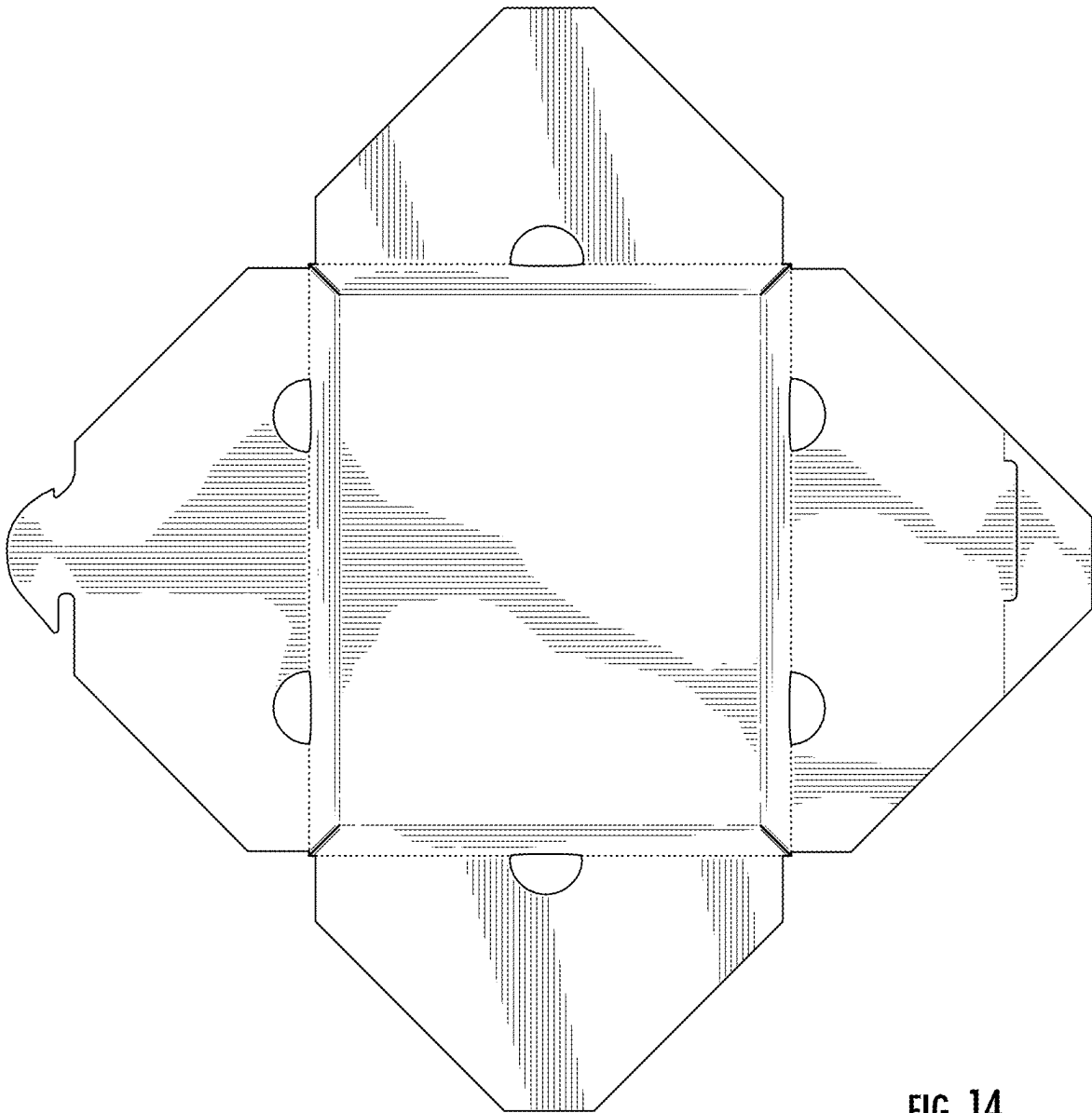


FIG. 14

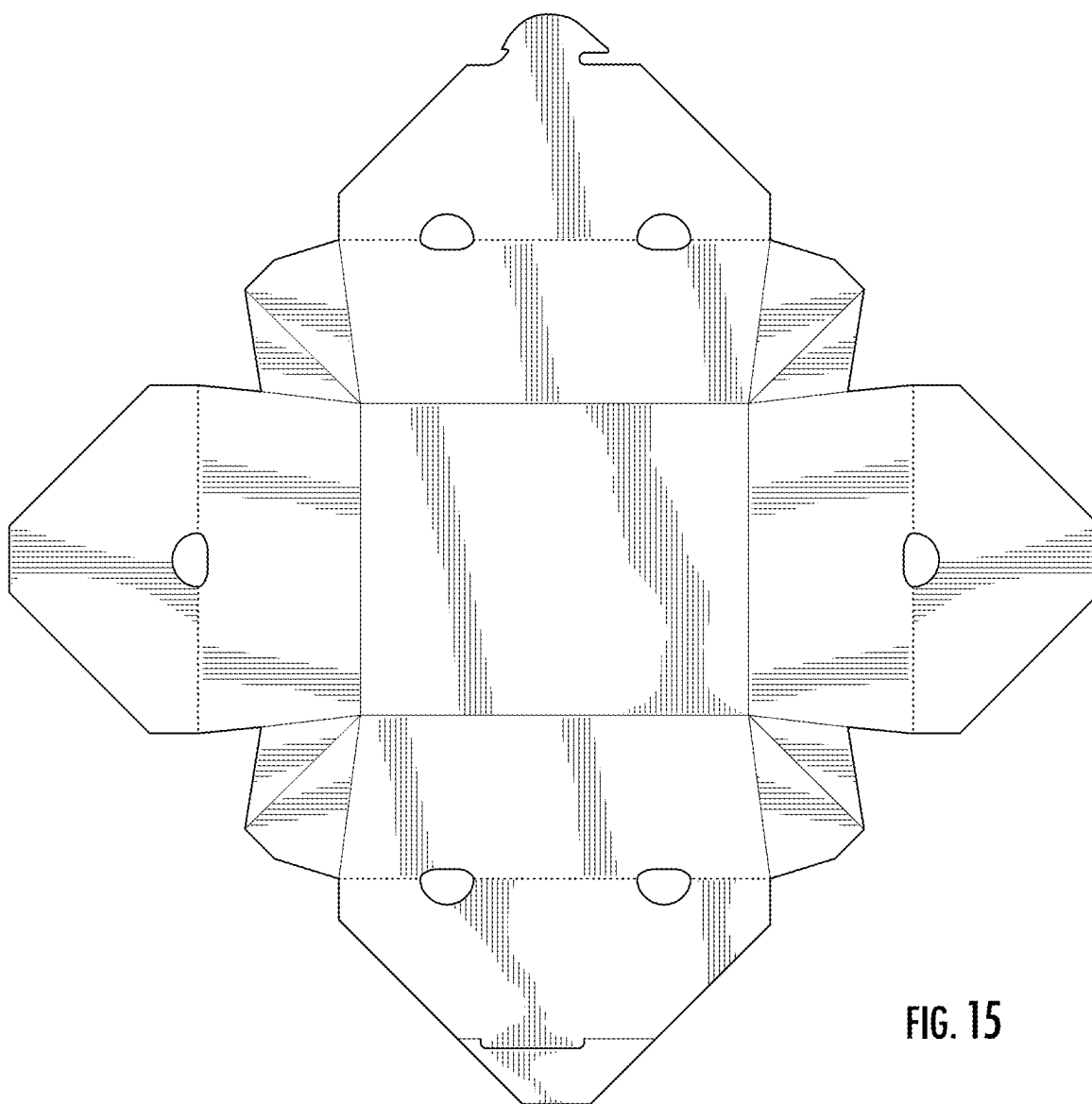


FIG. 15